

If no proceedings are initiated to appoint a successor trustee, the court will be compelled to hold a hearing and claimants will be required to file written claims to the funds no later than 15 days prior to the hearing. Any person with notice of the duty to file a claim who fails to file a timely claim establishing entitlement to the surplus proceeds will be deemed to have abandoned his or her claim.

MICHAEL MERLONGHI v. MARY DELBROCCO
Case No. CU26-00553

Demurrer

TENTATIVE RULING

Defendant MARY DELBROCCO's demurrer directed to Plaintiff MICHAEL MERLONGHI's complaint filed on January 21, 2026, is overruled as moot. Plaintiff filed a first amended complaint ("1AC") on February 26, 2026, prior to the filing of the demurrer or any responsive pleading. (Code Civ. Proc., §§ 472, 1005, subd. (b).) It appears from the court's file the 1AC was personally served on Defendant and Plaintiff's counsel on March 2, 2026 prior to the filing of the demurrer on March 11, 2026.

A timely filed amended pleading supersedes the original pleading and so moots a challenge to the now-defunct original pleading. (*Sylmar Air Conditioning v. Pueblo Contracting Services, Inc.* (2004) 122 Cal.App.4th 1049, 1054.)

The court confirms the case management conference scheduled for August 18, 2026. Updated case management conference statements shall be filed using Judicial Council Form CM 110 at least 15 days prior to the hearing.

FELIPE CRUZ HERNANDEZ v. HARPREET SINGH
Case No. FCS057281

Petitions to Approve Minor's Compromise

TENTATIVE RULING:

No appearances are necessary.

The petition to approve the minor's compromise is approved. The court appreciates that the compromise was the result of a binding arbitration in which multiple parties appeared and resolved competing claims towards the same pot of insurance proceeds. The petition is solely to approve the costs and fees from the funds that were awarded in binding arbitration to the minor.

The court will process the lodged order forthwith.
